

TENTATIVE RULING(S) FOR JULY 8, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2328644

MARTINEZ VS TAYLOR

TENTATIVE RULING(S):

Before the court is Defendant Burroughs' motion to compel further responses to set two requests for production (RFP) numbers 52-54. Plaintiff opposes and Burroughs replies. Procedurally, the motion to compel must be filed within 45 days of service of the verified response or before any later date agreed upon in writing. See Code Civ. Proc., § 2031.310, subd. (c).

Timeliness

Plaintiff served his verified responses and objections to Burroughs' set two RFP on September 5, 2025, via electronic mail. (Davis Decl., ¶4, Exh. B.) Forty-five days from 9/5/25 fell on Monday, October 20, 2025. Plaintiff's electronic mail service of his responses extended

Defendant's time to bring a motion to compel by two court days until Wednesday, October 22, 2025. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Defendant did not serve its motion until Thursday, October 23, 2025, rendering it untimely.

The timing deadline on motions to compel further responses is mandatory and a court may not entertain a belated motion to compel. (*Vidal Sassoon, Inc. v. Super. Ct.* (1983) 147 Cal.App.3d 681, 683 [construing former Code of Civil Procedure section 2030 regarding interrogatories].) An untimely motion to compel discovery constitutes a waiver of any right to compel a further response and such statutory provisions have been held at least “*quasi-jurisdictional*” in the sense that they divest the court of authority to rule on untimely motions to compel other than to deny them. (*Sexton v. Super. Ct.* (1997) 58 Cal.App.4th 1403, 1408-1410 (emphasis in original).) There is no evidence that the parties agreed to extend the deadline for Defendant to bring the motion to compel.

Since Defendant's motion is untimely, the motion is DENIED.